

2	25-01496788 <i>Assaf vs. Lowtemp</i>	1) Motion to Compel Further Responses to Form Interrogatories 2) Motion to Compel Response to Requests for Admissions <u>Motion No. 1</u> Plaintiff Adnan Assaf’s motion to compel defendant Rocky Lowtemp to provide responses to Plaintiff’s Form Interrogatories, Set One, is DENIED. The proof of service shows Plaintiff served Form Interrogatories, Set One, on Defendant who is appearing in <i>pro per</i> on 11-25-25 via email. (Soliman Decl., ¶ 4, Ex. 1.) There is no proof that Defendant consented to being served by electronic mail. Without express consent as required by Code of Civil Procedure section 1010.6, subdivision (c), service of the Form Interrogatories, Set One, by electronic mail on Defendant was insufficient. Plaintiff to give notice. <u>Motion No. 2:</u> Plaintiff Adnan Assaf’s motion for an order establishing admissions of defendant Rocky Lowtemp for failure to provide responses to Plaintiff’s Requests for Admission, Set One, is DENIED. The proof of service shows Plaintiff served Requests for Admission, Set One, on Defendant who is appearing in <i>pro per</i> on 11-25-25 via email. (Soliman Decl., ¶ 4, Ex. 1.) There is no proof that Defendant consented to being served by electronic mail. Without express consent as required by Code of Civil Procedure section 1010.6, subdivision (c), service of the Requests for Admission, Set One, by electronic mail on Defendant was insufficient. Plaintiff to give notice.
3	23-01313302 <i>Carmona vs. Mazella New Tech Corporation</i>	Motion for Summary Judgment and/or Adjudication Cross-Defendant OC Metals, Inc.’s (“OC Metals”) motion for summary judgment or, in the alternative, summary adjudication as to the Cross-Complaint of Mazzella New Tech Corporation (“Mazzella”) is CONTINUED to _____. It appears Mazzella filed an opposition to the wrong motion for summary judgment/adjudication (“MSJ”). OC Metals filed one MSJ against Plaintiff on the Complaint (ROA 248) and filed a separate MSJ against Mazzella on Mazella’s Cross-Complaint against OC Metals. (ROA 335.) On 7/10/26, Mazella filed its opposition to OC Metals MSJ, Response to Separate Statement; and Evidentiary Objections to OC Metals’ evidence. (ROA 418, 420, 431.) Although Mazella filed a Response to OC Metals’ Separate Statement, Mazella’s Responsive Separate Statement responds to OC Metals’ Separate Statement in support of its MSJ against Plaintiff and not OC

		Metals’ Separate Statement in support of its MSJ against Mazella. (See ROA 242, 331, 418.) Similarly, Mazella’s Memorandum of Points and Authorities responds to arguments made by OC Metals in its MSJ against Plaintiff and not OC Metals’ MSJ against Mazella. (See ROA 246, 327, 420.) Lastly, Mazella’s Evidentiary Objections object to declarations of Mari Kurtz, Anne Marie Ellis and Charles Temple. (ROA 431.) Although OC Metals filed a declaration of Temple in support of its MSJ against Plaintiff, no such declaration was filed in support of its MSJ against Mazella. (ROA 249, 336, 431.) Therefore, it appears to the court that Mazella opposed the wrong MSJ. In lieu of ruling on OC Metals MSJ as unopposed, given the public policy favoring disposition on the merits, the court will continue the hearing and allow Mazzella to file a proper opposition to OC Metals’ MSJ. Mazzella to file an opposition no later than 20 days before the continued hearing. OC Metals may file a reply no later than 11 days before the continued hearing. Moving party to give notice.
5	23-01310202 <i>Er vs. Chow</i>	1) Motion to Compel Deposition (Oral or Written) 2) Motion to Quash Subpoena <u>Motion to Quash and for Protective Order</u> Non-Party Xuying Liu’s Motion to Quash and for a Protective Order is DENIED in part and GRANTED in part. Liu is ORDERED to appear for her deposition and produce the requested documents. However, the Court limits the document requests to documents from 2020 to present. Code of Civil Procedure section 1987.1 provides, in part: “[T]he court, upon motion reasonably made by [a party, witness, consumer, or employee] . . . may make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon those terms or conditions as the court shall declare, including protective orders. In addition, the court may make any other order as may be appropriate to protect the person from unreasonable or oppressive demands, including unreasonable violations of the right of privacy of the person.” (Code Civ. Proc., § 1987.1, subds. (a)-(b).) “The court, for good cause shown, may make any order that justice requires to protect any party, deponent, or other natural person or organization from unwarranted annoyance, embarrassment, or oppression, or undue burden and expense.” (Code Civ. Proc., § 2025.420(b).) “If the motion for a protective order is denied in whole or in part, the court may order that the deponent provide or permit the discovery